

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

September 18, 2026

**Judge R. Shawn Nelson
Department C10**

Department C10 hears law and motion on Thursdays at 10:00 a.m. and 1:30 p.m.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5210. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording, and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling.

NO.	CASE NAME	MATTER
10:00 a.m		
1	Patriot Bank vs. Alvarado	The Motion to be Relieved as Counsel brought on behalf of Andrew Gramajo is DENIED, without prejudice. The Declaration of Gramajo provides that he has been unable to confirm Defendant Alvarado's current address after mailing the motion papers to the client's last known address, return receipt requested. (ROA # 60.) Attorney Gramajo does not provide any reason for the motion to be granted even if he has been unable to serve Defendant Alvarado. (ROA # 60, Gramajo Declaration, ¶ 3, subd. (c).) California Rule of Court, Rule 3.1362, subdivision (d) provides, in pertinent part, that the motion to be relieved as counsel of record must be accompanied by a declaration stating facts showing that either: "(A) The service address is the current residence or business address of the client; or

		[¶] (B) The service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved.” Rule 3.1362 further provides “[m]erely demonstrating that the notice was sent to the client’s last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current.” (Rules of Court, Rule 3.1362, subd. (d)(2).) The moving party to give notice.
1:30 p.m.		
1	Kim vs. Choi	Defendant/Cross-Complainant Jimi Choi’s motion for summary judgment and/or adjudication is DENIED. Defendant/Cross-Complainant’s objections to the declaration of Simon Kim are OVERRULED. <u>Page Limit Violation</u> As a preliminary matter, Defendant and Cross-Complainant Choi’s (hereinafter referred to as “Defendant” or “Choi”) motion for summary judgment is <u>48 pages</u>. The memorandum of points and authorities begins on page 3 and ends on page 51. Cal. R. Ct, rule 3.1113, subd. (d), provides: “Except in a summary judgment or summary adjudication motion, no opening or responding memorandum may exceed 15 pages. In a summary judgment or summary adjudication motion, no opening or responding memorandum may exceed 20 pages. No reply or closing memorandum may exceed 10 pages. The page limit does not include the caption page, the notice of motion and motion, exhibits, declarations, attachments, the table of contents, the table of authorities, or the proof of service.” According to Cal. R. Ct, rule 3.1113, subd. (g), “A memorandum that exceeds the page limits of these rules must be filed and considered in the same manner as a late-filed paper.” Plaintiff and Cross-Defendant Kim (hereinafter “Plaintiff” or “Kim”) objected to the length of Defendant’s memorandum. However, the court notes that Plaintiff’s opposition addressed all the major points of Defendant’s motion within an 8-page Opposition. Plaintiff had 12 pages to spare if he wanted to make additional arguments. Accordingly, Plaintiff does not appear to have been prejudiced by this violation, and the court will consider the motion. <u>General Standard</u>

“Summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c).) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact . . .” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at 851.)

A defendant moving for summary judgment satisfies the initial burden by submitting undisputed evidence “showing that a cause of action has no merit [because] one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc. § 437c, subd. (p)(2); *Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at pp. 850-51.) However, “[t]he defendant must indeed present evidence.” (*Aguilar*, *supra*, 25 Cal.4th at 855, italics original.)

In addition, if a plaintiff has pleaded several theories, the defendant has the burden of demonstrating there are no material facts requiring trial on any of them. (*Carlsen v. Koivumaki* (2014) 227 Cal.App.4th 879, 889.) If a defendant fails to meet this initial burden, the plaintiff need not oppose the motion and the motion must be denied. (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 840.)

If the moving party meets its burden, the burden then shifts to the party opposing summary judgment to show, by reference to specific facts, the existence of a triable, material issue as to a cause of action or an affirmative defense. (*Aguilar*, *supra*, 25 Cal.4th at 855; *Villacres v. ABM Industries, Inc.* (2010) 189 Cal.App.4th 562, 575.)

The nonmoving party must present substantial evidence in order to avoid summary judgment. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163.) “In some instances . . . , ‘evidence may be so lacking in probative value that it fails to raise any triable issue.’” (*Whitmire v. Ingersoll-Rand Co.* (2010) 184 Cal.App.4th 1078, 1083-1084, *quoting Advanced Micro Devices, Inc. v. Great American Surplus Lines Ins. Co.* (1988) 199 Cal.App.3d 791, 795.) “‘If the plaintiff is unable to meet her burden of proof regarding an essential element of her case, all other facts are rendered immaterial.’” (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 780, *quoting Leslie G. v. Perry & Associates* (1996) 43 Cal.App.4th 472, 482.)

In ruling on a motion for summary judgment, “the court must ‘consider all of the evidence’ and ‘all’ of the ‘inferences’ reasonably drawn therefrom, and must view such evidence and such inferences in the light most favorable to the opposing party.” (*Aguilar*, *supra*, 25 Cal.4th at p. 843, citations omitted.) Courts “‘construe the moving party's affidavits strictly, construe the opponent's affidavits liberally, and resolve doubts about the propriety of granting the motion in favor of the party opposing it.’” (*Unilab Corp. v. Angeles-IPA* (2016) 244 Cal.App.4th 622, 636, *quoting Seo v. All-Makes*

Overhead Doors (2002) 97 Cal.App.4th 1193, 1201–1202.) A court may not make credibility determinations or weigh the evidence on a motion for summary judgment, and all evidentiary conflicts are to be resolved against the moving party. (*McCabe v. American Honda Motor Corp.* (2002) 100 Cal.App.4th 1111, 1119.) “The court . . . does not resolve issues of fact. The court seeks to find contradictions in the evidence, or inferences reasonably deducible from the evidence, which raise a triable issue of material fact.” (*Johnson v. United Cerebral Palsy, etc.* (2009) 173 Cal.App.4th 740, 754, citation omitted.) “[S]ummary judgment cannot be granted when the facts are susceptible [of] more than one reasonable inference . . .” (*Rosas v. BASF Corp.* (2015) 236 Cal.App.4th 1378, 1392.)

“Summary adjudication works the same way as summary judgment, ‘except it acts on specific causes of action or affirmative defenses, rather than on the entire complaint.’ [citations] ‘A summary adjudication is properly granted only if a motion therefor completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.’” (*Rancho Cucamonga Central School Dist. v. Superior Court* (2025) 116 Cal.App.5th 718, 721 [internal citations and quotations omitted]).

Procedural Defects Regarding Motion for Summary Adjudication

Although Defendant Choi styles her motion as a motion for summary judgment or, in the alternative, summary adjudication, her motion and separate statement do not comply with the California Rules of Court.

Cal. R. Ct., rule 3.1350, subd. (b) provides:

If made in the alternative, a motion for summary adjudication may make reference to and depend on the same evidence submitted in support of the summary judgment motion. If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.

Defendant Choi’s notice of motion only states the following: “Defendant Jimi Choi is entitled to judgment as a matter of law on Plaintiff Simon Kim’s Complaint. In the alternative, Defendant seeks summary adjudication pursuant to Code of Civil Procedure section 437c(f) as to each cause of action and/or issue for which no triable issue of material fact exists.”

Furthermore, in Defendant’s Separate Statement of Undisputed Material Fact, Defendant does not state the causes of action. Both her notice of motion and her separate statement failed to comply with this rule. The notice and separate statement must be coordinated with regards to the issues to be adjudicated. The separate statement does not specify which sets of facts coordinate to which cause of action. (*See Schmidlin v. City of Palo Alto* (2007) 157 Cal.App.4th 728, 743–44 (“A motion for summary adjudication

tenders only those issues or causes of action specified in the notice of motion, and may only be granted as to the matters thus specified. The movant must ‘state[] specifically in the notice of motion and ... repeat[], verbatim, in the separate statement of undisputed material facts,’ ‘the specific cause of action, affirmative defense, claims for damages, or issues of duty’ as to which summary adjudication is sought. (Former Cal. Rules of Court, rule 342(b); see now Cal. Rules of Court, rule 3.1350(b).) The motion must be denied if the movant fails to establish an entitlement to summary adjudication of the matters thus specified; the court cannot summarily adjudicate other issues or claims, even if a basis to do so appears from the papers.”.)

Plaintiff objected on the grounds that the notice of motion and separate statement did not comply with CRC rule 3.1350(b).

Accordingly, the court denies the alternative motion for summary adjudication due to these procedural violations. The court will proceed on the motion for summary judgment only.

Invasion of Privacy

“A summary judgment motion is directed to the issues framed by the pleadings”. (*Canales v. Wells Fargo Bank, N.A.* (2018) 23 Cal.App.5th 1262, 1268). The court looks to the pleadings as “the outer measure of materiality” in a motion for summary judgment. (*FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 381.)

Plaintiff Kim alleges that he and Defendant Choi shared custody of their minor son, with each having set visitation rights. (Compl., ¶ 7). On May 31, 2024, pursuant to the parties’ visitation arrangement, Plaintiff Kim returned his son to Defendant Choi for Choi’s parental time. Unbeknownst to Plaintiff Kim, his son carried with him Plaintiff Kim’s Apple iPad, which Plaintiff Kim used for a variety of purposes, including sending and receiving messages over Apple’s proprietary iMessage secure messaging system, or SMS. Kim’s son had permission to play games on Plaintiff’s iPad. (Compl., ¶ 8).

Plaintiff Kim had an actual and reasonable expectation of privacy in his communications transmitted over iMessage, in that several contained sensitive and confidential information, including financial information, custody and childcare-related issues, intimate communications with partners, medical conditions and needs, and social matters that may result in scorn or humiliation. (Compl., ¶ 9). On or about June 3, 2024, Choi, without permission of Kim, accessed Kim’s communications in his iPad, reviewing an unknown number of messages, but no less than several months’ worth. Defendant Choi’s access is highly offensive to Plaintiff Kim. Choi disclosed those communications, or parts thereof, to a third party without Kim’s authorization. (Compl., ¶ 10). Kim’s right to privacy was invaded in violation of Civ. Code § 43. (Compl., 13). Kim alleges that he sustained damages and is entitled to punitive damages. (Compl., ¶¶ 14-15).

The complaint does not specify the type of cause of action for invasion of privacy (for example, intrusion, public disclosure of private matters, false light, etc.). Defendant appears to argue that Plaintiff is alleging an intrusion claim, and relies on *Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1, 39 and *Hernandez v. Hillsides, Inc.* (2009) 47 Cal.4th 272 in support of the requirements for this claim. In Plaintiff's Opposition, Plaintiff also appears to be arguing the required elements for an intrusion claim. (See Opp., 4:20-21 ["An intrusion claim requires an intentional intrusion into a private matter and conduct highly offensive to a reasonable person."]).

In *Hill, supra*, the court held that a state constitutional invasion of privacy claim, including a claim for intrusion into private affairs, includes three elements: "(1) a legally protected privacy interest; (2) a reasonable expectation of privacy in the circumstances; and (3) conduct by defendant constituting a serious invasion of privacy." (*Hill, supra*, 7 Cal.4th 1, 39-40; see also *Garrabrants v. Erhart* (2023) 98 Cal.App.5th 486, 497). The court in *Hill* also held that "[a]ctionable invasions of privacy must be sufficiently serious in their nature, scope, and actual or potential impact to constitute an egregious breach of the social norms underlying the privacy right. Thus, the extent and gravity of the invasion is an indispensable consideration in assessing an alleged invasion of privacy." (*Hill, supra*, 7 Cal.4th at 37).

In *Hernandez*, the court held the following: "A privacy violation based on the common law tort of intrusion has two elements. First, the defendant must intentionally intrude into a place, conversation, or matter as to which the plaintiff has a reasonable expectation of privacy. Second, the intrusion must occur in a manner highly offensive to a reasonable person." (*Hernandez v. Hillsides, Inc.* (2009) 47 Cal.4th 272, 286). "Plaintiffs must show more than an intrusion upon reasonable privacy expectations. Actionable invasions of privacy also must be 'highly offensive' to a reasonable person [citation] and 'sufficiently serious' and unwarranted as to constitute an 'egregious breach of the social norms' [citation]." (*Id.* at 295).

In *Hernandez*, the court acknowledged that the "right to privacy in the California Constitution sets standards similar to the common law tort of intrusion" (citing *Hill, supra*), and that this provision "creates at least a limited right of action against both private and government entities." (*Hernandez, supra*, 47 Cal.4th at 287).

Because both parties appear to agree that the standards for the common law tort of intrusion applies, the court will apply the elements set forth in *Hernandez*.

An intrusion upon reasonable privacy expectations

Defendant Choi contends that she did not engage in surveillance, monitoring, hacking, or technological intrusion of the iPad, and that Plaintiff had no reasonable expectation of privacy in an iPad provided to, and used by, a minor child during Defendant's custodial time.

The first element “concerns whether the [matter] was protected from intruders. Under California law, the protection under the tort of invasion of privacy covers ‘spheres’ where an ordinary person in plaintiff’s position could reasonably expect that the particular defendant should be excluded.” (*Sanchez-Scott v. Alza Pharmaceuticals* (2001) 86 Cal.App.4th 365, 373.)

The court in *Hernandez* held that “the defendant must have ‘penetrated some zone of physical or sensory privacy ... or obtained unwanted access to data’ by electronic or other covert means, in violation of the law or social norms.” (*Hernandez, supra*, 47 Cal.4th at 286). Privacy, “for purposes of the intrusion tort, is not a binary, all-or-nothing characteristic.” (*Id.* at 289 [citing *Sanders v. American Broadcasting Companies, Inc.* (1999) 20 Cal.4th 907]).

“A ‘reasonable’ expectation of privacy is an objective entitlement founded on broadly based and widely accepted community norms. (See, e.g., Rest.2d Torts, *supra*, § 652D, com. c [‘The protection afforded to the plaintiff’s interest in his privacy must be relative to the customs of the time and place, to the occupation of the plaintiff and to the habits of his neighbors and fellow citizens.’]).” (*Hill, supra*, 7 Cal.4th at 37). “In addition, customs, practices, and physical settings surrounding particular activities may create or inhibit reasonable expectations of privacy.” (*Id.* at 36). “Finally, the presence or absence of opportunities to consent voluntarily to activities impacting privacy interests obviously affects the expectations of the participant.” (*Id.* at 37).

Defendant Choi presents the following in her SSUMF: On or about May 24, 2024, during a routine custodial exchange, the minor child came into Defendant’s care while already in possession of an Apple iPad. (SSUMF 5). Defendant was not present when the device was provided to the child and did not authorize the child to possess it. (SSUMF 6). Plaintiff did not inform Defendant, prior to the custodial exchange, that he had provided the iPad to the child. Defendant first learned of the iPad when the child arrived with it. (SSUMF 7). Because the child was seven years old, Defendant reasonably became concerned about the presence of an unrestricted electronic device capable of internet access, messaging, and media storage. Those concerns arose immediately upon observing the device in the child’s possession. (SSUMF 8).

Plaintiff testified the iPad was used for ordinary child activities, including games. (SSUMF 9). Plaintiff testified the child sometimes used the iPad outside Plaintiff’s immediate physical presence. (SSUMF 10). Plaintiff did not instruct the child that the iPad was restricted from access by Defendant during Defendant’s custodial parenting time. Plaintiff provided no directive to the child that the device must remain private from the child’s custodial parent. (SSUMF 11). Plaintiff testified the iPad was kept on a nightstand in Plaintiff’s bedroom. Plaintiff did not testify that the device was secured in a locked location inaccessible to the child. (SSUMF 12).

Plaintiff testified he understood iPads generally have security features such as passcodes and related settings. Plaintiff nonetheless could not identify which security features, if any, were enabled on the iPad at the relevant time. (SSUMF 14). Plaintiff testified he does not know whether the iPad was locked, whether a passcode was required at the relevant time, or what protections were in place when the device was not in Plaintiff's possession. Plaintiff could not identify any security measure that Defendant allegedly bypassed, defeated, or circumvented. (SSUMF 15). Plaintiff testified he did not provide the minor child with a security code to access the iPad. (SSUMF 16). Plaintiff testified the child did not have a separate password or user profile on the iPad. Plaintiff did not describe child-specific restrictions that would segregate or protect Plaintiff's data from ordinary access on the device. (SSUMF 17). Plaintiff failed to identify any parental control settings, encryption configurations, device locking measures, or other concrete safeguards that were enabled and in effect at the time of the alleged conduct. Plaintiff did not provide technical facts establishing that any meaningful restriction existed that Defendant overcame. (SSUMF 18). At the time Defendant encountered and briefly reviewed the iPad during her custodial parenting time, the device did not appear to be password protected, locked, or restricted from access in any way. Defendant did not observe any passcode prompt, lock screen, or access limitation preventing ordinary use of the device. (SSUMF 19).

Defendant briefly reviewed the iPad while it was in the child's possession and present in Defendant's home. Defendant's purpose was to assess child safety concerns, not to collect data for personal use. (SSUMF 20).

On June 20, 2024, Defendant's counsel sent a written communication to Plaintiff's family law counsel attaching Defendant's Request for Order and supporting materials, which identified text messages found on the iPad referencing alleged substance use and stated that those messages formed the basis for Defendant's custody-related safety concerns. (SSUMF 24). Plaintiff received the June 20, 2024 correspondence the same day and forwarded it to his counsel. (SSUMF 25).

Across multiple sets of Special Interrogatories, Plaintiff did not identify a single specific message allegedly accessed by Defendant. Plaintiff's responses contain no identification of sender/recipient, date, platform, or content of any alleged "private communication." (SSUMF 35).

Plaintiff produced Apple "Find My" notifications reflecting that on June 5, 2024—two days after the alleged June 3 access—Plaintiff received an automated notice that the iPad was located at a specific Los Angeles address. (SSUMF 41). Despite receiving location information, Plaintiff did not make a contemporaneous written demand for return until July 2, 2024. (SSUMF 42). Plaintiff did not report the iPad as stolen or contact law enforcement. Plaintiff did not identify any prompt protective steps taken to prevent alleged ongoing access. (SSUMF 43).

However, in his Opposition, Plaintiff sets forth that he permitted his son to use the iPad for games and Facetime, but not to open his private messages, photographs or records. He did not give Defendant permission to access the iPad or its data. (Response to SSUMF 10). As the court held in *Sanchez-Scott, supra*, “an ordinary person in plaintiff’s position could reasonably expect that the particular defendant [Choi] should be excluded” from reviewing his iPad data. (*Sanchez-Scott, supra*, 86 Cal.App.4th at 373).

The fact that Plaintiff’s seven-year-old son was permitted to play games on his iPad does not erode any level of expectation of privacy that Plaintiff would have on his iPad, particularly against another adult such as Defendant. Similarly, the fact that he does not have a passcode does not mean that an individual has no expectation of privacy from other individuals searching that device.

Plaintiff provides no authority in support of her contention that the first element for intrusion cannot be met simply because the intruder did not “hack” into the device. Although not an intrusion case, *M.G. v. Time Warner* (2001) 89 Cal.App.4th 623, is instructive on this point. The court held: “But the claim of a right of privacy is not ‘ “ ‘so much one of total secrecy as it is of the right to *define* one’s circle of intimacy—to choose who shall see beneath the quotidian mask.’ ” ’ Information disclosed to a few people may remain private.” (*Id.* at 632 [footnotes omitted]).

Plaintiff also sets forth that Defendant searched the iPad for terms such as “molly,” and “Fisler” viewed photographs and text-message communications, captured screenshots, and saved/copied material from the iPad without receiving consent from Defendant. (AUMF 1, 3). She reviewed Plaintiff’s messages and photographs for more than 15 minutes. (AUMF 4).

Defendant also photographed a Vacheron Constantin receipt, a Southern California Edison bill, a Spirit Airlines boarding pass, and a California tax refund check. (AUMF 7). These records also appear to be private financial records.

Accordingly, the court finds that there is a triable issue as to whether Defendant has a reasonable expectation of privacy.

Serious invasion of privacy/highly offensive to a reasonable person

For this element, one must consider: “(1) the degree of intrusion; (2) the context, conduct and circumstances surrounding the intrusion; (3) the intruder’s motives and objectives; (4) the setting into which the intrusion occurs; and (5) the expectations of those whose privacy is invaded.” (*Sanchez-Scott v. Alza Pharmaceuticals* (2001) 86 Cal.App.4th 365, 377.)

Defendant sets forth the following in her SSUMF:

During her custodial parenting time, Defendant briefly reviewed the iPad while it was in the child's possession and present in Defendant's home. Defendant's purpose was to assess child safety concerns, not to collect data for personal use. (SSUMF 20). Defendant did not bypass passwords, defeat security features, install spyware or monitoring tools, extract data, or retrieve deleted content from the iPad. Defendant viewed only content accessible on the device as presented. (SSUMF 21). Defendant did not log into Plaintiff's Apple ID or iCloud account and did not access third-party accounts through the device. Defendant did not remotely access the iPad or engage in any "hacking" method. (SSUMF 22). Defendant did not bypass, defeat, or circumvent any password or security feature because the iPad did not appear to be password-protected or restricted at the time it was reviewed. (SSUMF 23).

Plaintiff alleges Defendant accessed the iPad "on or about June 3, 2024." Plaintiff does not allege a specific time of day, specific access method, or any specific technical act constituting intrusion. (SSUMF 28). Plaintiff alleges Defendant reviewed "an unknown number of messages, but no less than several months' worth." Plaintiff does not identify any specific message, file, or communication forming the basis of that allegation. (SSUMF 29). Plaintiff alleges Defendant's conduct was "highly offensive," but Plaintiff does not identify any concrete conduct—such as bypassing security, installing spyware, extracting data, or disseminating information—supporting that label. (SSUMF 30).

Plaintiff responded he was "not aware of any" third-party services that may have access to the iPad communications. (SSUMF 34). Across multiple sets of Special Interrogatories, Plaintiff did not identify a single specific message allegedly accessed by Defendant. (SSUMF 35).

As discussed above, Plaintiff set forth facts showing that Defendant, without Plaintiff's permission, searched the iPad for certain terms, viewed photographs and text-message communications, reviewed Plaintiff's messages and photographs for more than 15 minutes, captured screenshots, and saved/copied material from the iPad without receiving consent from Defendant. (AUMF 1, 3, 4). She also photographed a Vacheron Constantin receipt, a Southern California Edison bill, a Spirit Airlines boarding pass, and a California tax refund check. (AUMF 7). Plaintiff also set forth that Defendant could not identify the full scope of her searches, review sessions, screenshots, photographs, or other material she accessed from the iPad. (AUMF 8). She testified that she no longer had the photographs or images she took from the iPad and could not identify when they were deleted or the full scope of what she had taken, copied, or filed. (AUMF 9).

For example, in her deposition, she was unable to testify whether she reviewed communications between Plaintiff and his counsel. She does not recall if she took photographs relating to information about Plaintiff fixing his residence. (PL Ex. 1; Choi Depo. Transcript, at 88:8-9, 89:14-17).

With regards to Defendant's motives, it cannot be said that Plaintiff's motives were strictly for child health and safety purposes. Defendant's financial records, home repair records, attorney-client privileged communications, and tax records are not necessarily relevant to their son's safety.

With regards to Plaintiff's expectations, Plaintiff did not expect that his ex-spouse would be reviewing his iPad for information that he did not provide to her. With regards to the "setting into which the intrusion occurs" Defendant came across the iPad because her son brought it into her home, and Defendant initially reviewed the iPad to determine why it was in her son's possession and whether it should be in her son's possession. However, she continued to search the iPad for reasons unrelated to safety, and was unable to testify the extent of what she searched and copied from the iPad.

Accordingly, the court finds that there exists a triable issue of material fact as to whether her conduct was highly offensive.

Damages

Next, Defendant contends that Plaintiff cannot establish damages as an element for his claims.

However, Defendant does not establish what type of damages, if any, is required for the tort of intrusion of privacy, and the court in *Hernandez, supra*, does not set forth damages as any of the required elements.

In Plaintiff's complaint, Plaintiff prays for compensatory damages, punitive damages, and injunctive relief, among other types of relief. As part of his claim, Plaintiff may seek damages relating to mental suffering and anguish. (See *Miller v. National Broadcasting Co.* (1986) 187 Cal.App.3d 1463, 1484).

In Defendant's SSUMF, Defendant sets forth the following: Plaintiff testified he has not sought therapy or counseling for emotional distress allegedly caused by Defendant's conduct. Plaintiff did not identify any diagnosis, treatment provider, prescription, or medical visit connected to the alleged distress. (SSUMF 47). Plaintiff testified he cannot identify any actual damage to his reputation and described the alleged reputational harm as speculative. Plaintiff did not identify any concrete instance of misuse, dissemination, or resulting consequence. (SSUMF 49).

However, Defendant's own evidence demonstrates that Plaintiff stated in his discovery responses that he has experienced ongoing feelings of intrusion and anxiety. (DF Ex. C). Plaintiff submitted a declaration in support of his Opposition stating the same. (Decl. of Kim, ¶ 20).

In support of her Reply, Defendant contends that Plaintiff stated in his form interrogatory responses that he answered "No" as to whether he suffered mental or emotional injury. (See DF Ex. B). Defendant cites to *D'Amico v.*

		<i>Board of Medical Examiners</i> (1974) 11 Cal.3d 1, 21–22 in support of her contention that unequivocal discovery admissions carry substantial weight on summary judgment, and a later declaration contradicting them does not, alone, create a triable issue absent a credible explanation. But there are no unequivocal discovery admissions. Plaintiff set forth in his responses to special interrogatories, on multiple occasions, that he suffered anxiety. (See DF Ex. C; DF. Ex. E). These responses were served at the same time as the form interrogatory responses. Accordingly, there is a triable fact on the issue of damages. <u>Litigation Privilege -Civ. Code § 47(b)</u> Finally, Defendant contends that her conduct is independently protected by the litigation privilege set forth in Civil Code section 47(b). However, Defendant appears to abandon this defense to the cause of action in her Reply, wherein she states: Plaintiff relies on <i>Kimmel v. Goland</i> (1990) 51 Cal.3d 202, and Choi agrees with its relevant distinction: the litigation privilege does not immunize independently tortious, noncommunicative evidence-gathering merely because later used in litigation. (<i>Id.</i> at pp. 209 211.) Choi does not rely on Civil Code section 47(b) to immunize the antecedent review of the iPad; the privilege is invoked only as to later qualifying communications made in the Family Court proceedings.” (Reply, 10:13-19). In her Reply, Defendant contends that she does not ask the court to hold every communication with school personnel privileged, but rather to note that her testimony concerns transmission of court documents or files containing photographs, and that this distinction remains relevant to the high-offensive inquiry. (Reply, 10:26-27, 11:1). However, the test of whether conduct is highly offensive contains a multitude of factors to consider. Furthermore, as discussed above, Plaintiff testified that she could not identify the full scope of what she reviewed, copied or photographed from his iPad. Accordingly, the motion is DENIED. Defendant Choi shall give notice.
2	Cardoza vs. Gaytan	Plaintiff Rick Alika Vierra Cardoza’s motion for relief from sanctions is DENIED. Plaintiff has not sufficiently established he is unable to pay the sanctions. Plaintiff does not provide any evidence that he does or does not receive

		income from other sources besides social security, whether he has any savings, etc., or whether he has any other assets from where payment can be made. Declaring that he has substantial credit card debt is simply evidence of non-payment of debts owed, not an inability to pay. Further, it is unclear how much in sanctions is still owed. Plaintiff claims to continue to make payments in good faith while awaiting the hearing, but the motion was filed in March and there is no indication that Plaintiff has been setting aside any money to make payments. The motion is DENIED. Defendant to give notice.
3	Sarhadi vs. Mobilitas Insurance Company	Petitioner Alireza Sarhadi moves to compel Respondents Mobilitas Insurance Company and United States Fire Insurance Company. The motion is CONTINUED to <u>December 17, 2026</u>, in this Department. The court record shows no proof of service of notice of this hearing or the moving papers on Respondent Mobilitas Insurance Company (“Mobilitas”). Petitioner purportedly served the moving papers and notice of hearing by electronic means on FIZTERALD KREDITOR BOLDUC RISBROUGH LLP. (See ROA # 8 at POS; ROA # 31 at POS.) The court record shows Respondent Mobilitas has not appeared in this action, has no counsel of record, and has not consented to electronic service. No later than 16 court days before the continued hearing, Petitioner shall file and service notice of all moving papers and the continued hearing date on Respondent Mobilitas Insurance Company. Respondent Mobilitas shall file and serve any Opposition no later than nine (9) court days before the continued hearing. Petitioner shall file and serve any Reply no later than five (5) court days before the continued hearing. The court will not consider any further filings from Respondent United States Fire Insurance Company. Petitioner to give notice.
4	Douglas vs. Regents of the University of California	<u>Demurrer.</u> Defendant Apple Inc. demurs to the Second Amended Complaint (“SAC”) filed by Plaintiff Christopher Ryan Douglas. For the following reasons, the demurrer is SUSTAINED WITH LEAVE TO AMEND. Should Plaintiff wish to file a Third Amended Complaint, he shall do so by October 8, 2026.

In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1404-05.)

In his opposition, Plaintiff voluntarily dismissed his Civil RICO, Bane Act, FEHA Discrimination and Retaliation, Whistleblower Retaliation, and Negligent Infliction of Emotional Distress claims as to Apple.

These claims are thus dismissed without prejudice.

First cause of action

The first cause of action is styled, "Attempted Civil Extortion, Extortion, Commercial Bribery, Civil Rights Interference, Witness Tampering, and Conspiracy (Including RICO Predicate Acts, California Unfair Competition Law, Proposition 64, and Bane Act Violations, and Prior Misconduct Creating a Hostile Environment." (SAC at 50:17-21.) As discussed in the Court's September 3, 2026 minute order, Plaintiff appears to assert numerous theories against Defendant, including extortion, bribery, violation of California unfair competition law, and violation of the Bane Act. This is a proper basis upon which to sustain a special demurrer. (*Campbell v. Rayburn* (1954) 129 Cal.App.2d 232, 235 ["A further consideration is that the special demurrer was properly sustained because the complaint was defective in that two purported causes of action were not separately stated."].) Plaintiff has also agreed to dismiss portions of this cause of action, including the Bane Act claim and the RICO claim.

Further, the SAC does not sufficiently allege a civil conspiracy as to Defendant Apple or a violation of California's Unfair Competition Law, Business & Professions Code § 17200 et seq.

"Conspiracy is not an independent cause of action, but rather a doctrine imposing liability for a tort upon those involved in its commission." (*1-800 Contacts, Inc. v. Steinberg* (2003) 107 Cal.App.4th 568, 590.) Thus, liability for a conspiracy "must be activated by the commission of an actual tort." (*Applied Equipment Corp. v. Litton Saudi Arabia Ltd.* (1994) 7 Cal.4th 503, 511.)

For example, in a claim for intentional misrepresentation, where one defendant 'A' alone made representations, the plaintiff can hold [other defendants (B and C)] liable with A only by alleging and proving that A acted pursuant to an agreement (conspiracy) with B and C to defraud. Thus, the purpose of the [conspiracy] allegation is to establish the liability of B and C as joint tortfeasors regardless of whether either was a direct participant in the wrongful act.' [Citation.]" (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1172 (Daniels).)

“To allege a conspiracy, a plaintiff must plead ‘(1) formation and operation of the conspiracy and (2) damage resulting to plaintiff (3) from a wrongful act done in furtherance of the common design.’ [Citation.]” (*Daniels, supra*, 246 Cal.App.4th at p. 1173.) “[F]acts must be alleged” as to each element (*117 Sales Corp. v. Olsen* (1978) 80 Cal.App.3d 645, 649) and “bare legal conclusions, inferences, generalities, presumptions, and conclusions are insufficient.” (*Nicholson v. McClatchy Newspapers* (1986) 177 Cal.App.3d 509, 521.) “The conspiring defendants must also have actual knowledge that a tort is planned and concur in the tortious scheme with knowledge of its unlawful purpose.” (*Kidron v. Movie Acquisition Corp.* (1995) 40 Cal.App.4th 1571, 1582.) Even “actual knowledge of the planned tort, without more, is insufficient to serve as the basis for a conspiracy claim. Knowledge of the planned tort must be combined with intent to aid in its commission.” (*Ibid.*)

The SAC does not sufficiently allege an agreement between Apple and another defendant to commit an independently wrongful act, and the UCL “claim” is derivative of this conspiracy theory.

The demurrer to this cause of action is sustained.

Second cause of action

The second cause of action is styled, “Violation of California Government Code §§ 11135 et seq. and 12940 et seq., and California Code Regs., Title 2, § 14071 — Discrimination and Retaliation.” (SAC at 63:8-10.)

Plaintiff has agreed to dismiss this cause of action as to Apple. The demurrer to this cause of action is sustained with leave to amend.

Third cause of action

The third cause of action is styled, “defamation, civil conspiracy, and tortious interference.” As discussed previously in connection with the first cause of action, this cause of action is uncertain because it combines three causes of action into one.

The elements for a claim of interference with economic advantage are: (1) an economic relationship between the plaintiff and some third party, with the probability of future economic benefit to the plaintiff; (2) the defendant’s knowledge of the relationship; (3) intentional (or negligent) acts on the part of the defendant designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm to the plaintiff proximately caused by the acts of the defendant. *Crown Imports, LLC v. Superior Court* (2014) 223 Cal.App.4th 1395, 1404. When the tort of intentional interference with economic advantage is alleged, an additional element is required – the alleged interference must have been wrongful by some measure beyond the fact of the interference itself. (*Id.*) The SAC does not sufficiently allege that Apple had knowledge of any particular economic relationship between Plaintiff and a third party that Apple intentionally attempted to disrupt.

The demurrer to this cause of action is sustained with leave to amend.

Fourth cause of action

The fourth cause of action is for breach of the implied covenant of good faith and fair dealing. Plaintiff dismissed this cause of action as to Apple on March 10, 2026. (ROA 211.)

Fifth cause of action

The fifth cause of action is for whistleblower retaliation under California labor code § 1102.5. As noted previously, Plaintiff agreed to waive this claim. The demurrer to this cause of action is sustained with leave to amend.

Sixth cause of action

The sixth cause of action is for negligent and intentional infliction of emotional distress. Plaintiff concedes that the claim for negligent infliction of emotional distress should be dismissed.

To state a claim for intentional infliction of emotional distress, plaintiff must allege: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050-51.) "A defendant's conduct is 'outrageous' when it is so 'extreme as to exceed all bounds of that usually tolerated in a civilized community.' And the defendant's conduct must be 'intended to inflict injury or engaged in with the realization that injury will result.'" (*Ibid.*)

The SAC does not sufficiently plead outrageous conduct by Apple that is so extreme as to exceed all bounds of that usually tolerated in a civilized community.

The demurrer to this cause of action is sustained with leave to amend.

Plaintiff was already granted leave to amend with respect the Regent Defendants' demurrer, and this is the first pleadings challenge filed by Apple on which the Court has ruled. Thus, the Court grants Plaintiff leave to amend.

Moving Defendant shall file and serve notice of this ruling.

Demurrer.

Navigate Biopharma Services, Inc. demurs to the Second Amended Complaint ("SAC") filed by Plaintiff Christopher Ryan Douglas. For the

following reasons, the demurrer is **SUSTAINED WITH LEAVE TO AMEND.**

Should Plaintiff wish to file a Third Amended Complaint, he shall do so by October 8, 2026.

In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1404-05.)

In his opposition, Plaintiff voluntarily dismissed his Civil RICO, Bane Act, Whistleblower Retaliation, and Negligent Infliction of Emotional Distress claims as to Navigate. Further, on March 10, 2026, Plaintiff dismissed the second and fourth causes of action as to Navigate. (ROA 211.) These claims are thus dismissed without prejudice.

First cause of action

The first cause of action is styled, "Attempted Civil Extortion, Extortion, Commercial Bribery, Civil Rights Interference, Witness Tampering, and Conspiracy (Including RICO Predicate Acts, California Unfair Competition Law, Proposition 64, and Bane Act Violations, and Prior Misconduct Creating a Hostile Environment)." (SAC at 50:17-21.) As discussed previously, Plaintiff appears to assert numerous theories against Defendant, including extortion, bribery, violation of California unfair competition law, and violation of the Bane Act. This is a proper basis upon which to sustain a special demurrer. (*Campbell v. Rayburn* (1954) 129 Cal.App.2d 232, 235 ["A further consideration is that the special demurrer was properly sustained because the complaint was defective in that two purported causes of action were not separately stated."].) Plaintiff has also agreed to dismiss portions of this cause of action, including the Bane Act claim and the RICO claim.

The demurrer to this cause of action is sustained.

Second cause of action

The second cause of action is styled, "Violation of California Government Code §§ 11135 et seq. and 12940 et seq., and California Code Regs., Title 2, § 14071 — Discrimination and Retaliation." (SAC at 63:8-10.)

Plaintiff has already dismissed this cause of action as to Navigate without prejudice. (ROA 211.)

Third cause of action

The third cause of action is styled, "defamation, civil conspiracy, and tortious interference." As discussed previously in connection with the first

		cause of action, this cause of action is uncertain because it combines three causes of action into one. The demurrer to this cause of action is sustained with leave to amend. <u>Fourth cause of action</u> The fourth cause of action is for breach of the implied covenant of good faith and fair dealing. Plaintiff already dismissed this cause of action as to Navigate on March 10, 2026. (ROA 211.) <u>Fifth cause of action</u> The fifth cause of action is for whistleblower retaliation under California labor code § 1102.5. As noted previously, Plaintiff agreed to dismiss this claim. The demurrer to this cause of action is sustained with leave to amend. <u>Sixth cause of action</u> The sixth cause of action is for negligent and intentional infliction of emotional distress. Plaintiff concedes that the claim for negligent infliction of emotional distress should be dismissed. To state a claim for intentional infliction of emotional distress, plaintiff must allege: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (<i>Hughes v. Pair</i> (2009) 46 Cal.4th 1035, 1050-51.) "A defendant's conduct is 'outrageous' when it is so 'extreme as to exceed all bounds of that usually tolerated in a civilized community.' And the defendant's conduct must be 'intended to inflict injury or engaged in with the realization that injury will result.'" (<i>Ibid.</i>) The SAC does not sufficiently plead outrageous conduct by Navigate that is so extreme as to exceed all bounds of that usually tolerated in a civilized community. The demurrer to this cause of action is sustained with leave to amend. Consistent with the discussion above, this is the first pleadings challenge filed by Navigate on which the Court has ruled. Thus, the Court grants Plaintiff leave to amend. Moving Defendant shall file and serve notice of this ruling.
5	Cao vs. Dang	Defendant Thao Le Phuong Dang moves to set aside the default entered against her on March 11, 2026. For the following reasons, the motion is GRANTED.

Plaintiff objects to Defendant's declaration in its entirety on the basis that Defendant states she does not write or speak English well but the entire declaration is in English.

Plaintiff cites to *Detrick v. Shimada* (2026) 120 Cal.App.5th 170, in which the Court of Appeal held:

Shimada could not "directly" express herself in her declaration because she cannot write or speak English. (Evid. Code, § 701, subd. (a).) Nor could she certify under penalty of perjury that the contents of her English-language declaration were true and correct, as required under Code of Civil Procedure section 2015.5, because she could not read it. To establish her competence as a witness, therefore, she required "interpretation by one who can understand" her. (Evid. Code, § 701, subd. (a).)

(*Detrick v. Shimada* (2026) 120 Cal.App.5th 170, 177.) The Court expressly noted, "It is undisputed Shimada cannot read, write, or speak English, and thus her competence as a witness depended on an interpreter as an intermediary." (*Id.* at 173.)

Here, however, Defendant does not state she cannot write or speak English at all. She states, "I do not read or understand English well. I am not familiar with legal documents or court procedures in the United States." (Dang Dec., ¶ 2.) While Defendant may not be proficient in the English language, Plaintiff has not shown that her declaration is inadmissible. Plaintiff's objection is overruled.

Code Civ. Proc. § 473.5

Code Civ. Proc. § 473.5(a) provides:

When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against the party in the action, the party may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action.

Code Civ. Proc. § 473.5 is designed to provide relief where there has been proper service of summons (e.g., by substitute service or by publication) but defendant nevertheless did not find out about the action in time to defend. Typically, these are cases in which service was made by publication. (*Randall v. Randall* (1928) 203 Cal. 462, 464-65; *Trackman v. Kenney* (2010) 187 Cal.App.4th 175, 180.)

A motion under Section 473.5 must be accompanied by a declaration showing (a) defendant's lack of notice of the action in time to defend; and (b) that such lack "was not caused by his or her avoidance of service, or inexcusable neglect." (Code Civ. Proc. § 473.5(b); *Anastos v. Lee* (2004) 118 Cal.App.4th 1314, 1319; *Pulte Homes Corp. v. Williams Mechanical, Inc.* (2016) 2 Cal.App.5th 267, 274-75.)

In *Goya v. P.E.R.U. Enterprises* (1978) 87 Cal.App.3d 886, the court considered the declaration of Defendants that they are natives of Peru and can neither read nor write English except to a very limited degree (among other factors) under Code Civ. Proc. § 473.5. The Court held that “the Veras were unaware of the nature of the documents and said documents did not result in actual notice to the Veras in time to defend the action individually and on behalf of La Brea Inn.” (*Id.* at 862, fn. 3 [affirming order vacating default]).

Defendant’s declaration states she “received notice of hearing with a court date on the document related to the case via mail...” (Dang Dec., ¶ 4.) While Defendant does not state specifically when she received these documents via mail, she has sufficiently shown that, as those defendants in *Goya*, she was unaware of the nature of the documents and they did not result in actual notice to Defendant in time to defend the action.

Further, relief is also available under Section 473(b).

Code Civ. Proc. § 473(b)

Code Civ. Proc. § 473(b) permits a court to grant relief from a judgment, dismissal, order or other proceeding taken against a party on the grounds of “mistake, inadvertence, surprise or excusable neglect.” Code Civ. Proc. § 473(b) permits a court to grant two types of relief. (*Leader v. Health Industries of Am., Inc.*, 89 Cal. App. 4th 603, 615 (2001).) A court may grant discretionary relief upon the moving party’s showing of mistake, inadvertence, surprise or excusable neglect. (*Id.* at 615-616.) A court must grant mandatory relief upon a showing by an attorney declaration of mistake, inadvertence, surprise or neglect. (*Id.* at 616.)

“[T]he provisions of section 473 ... are to be liberally construed and sound policy favors the determination of actions on their merits.” (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 256.)

A motion seeking relief under Section 473(b) must be brought within 6 months of entry of the judgment. Cal. Civ. Proc. Code § 473(b). This limit is jurisdictional. (*Austin v. Los Angeles Unified School Dist.* (2016) 244 Cal.App.4th 918, 928 (“This six-month time limitation is jurisdictional; the court has no power to grant relief under section 473 once the time has lapsed.”).)

Here, Defendant filed the motion to vacate on April 23, 2026, well within 6 months of the March 11, 2026 entry of default. The motion is timely. And Defendant submitted a proposed Answer along with the Motion, as required by Section 473(b).

Defendant has also sufficiently shown mistake, inadvertence, or excusable neglect. With a limited grasp of the English language, she relied on others to help her understand the documents, she did not understand that she was

		required to file a written response, and she filed this motion less than 45 days after her default was entered. (See Dang Dec.) Defendant is ORDERED to file her Answer to the Complaint within 10 days of this ruling. Case Management Conference is continued to <u>December 17, 2026</u>, at 09:00 am in Department C10. Defendant shall give notice of this ruling.
6	Orange Coast Medical Center vs. Imagine 360	Defendant Imagine360 Administrators, LLC’s motion to quash summons is GRANTED. Due process permits state courts to exercise personal jurisdiction over nonresidents who have “minimum contacts” with the forum state. “Minimum contacts” means the relationship between the nonresident and the forum state is such that the exercise of jurisdiction does not offend “traditional notions of fair play and substantial justice” under the U.S. Constitution's Fourteenth Amendment Due Process Clause. (<i>International Shoe Co. v. Washington</i> (1945) 326 US 310, 316; <i>Burger King Corp. v. Rudzewicz</i> (1985) 471 US 462, 475—“Jurisdiction is proper . . . where the contacts proximately result from actions by the defendant <i>himself</i> that create a ‘substantial connection’ with the forum State” (emphasis in original).) Pursuant to California's long-arm statute, California courts may exercise jurisdiction on any basis not inconsistent with the California or United States Constitutions. (Code Civ. Proc., § 410.10.) “A state court's assertion of personal jurisdiction over a nonresident defendant who has not been served with process within the state comports with the requirements of the due process clause of the federal Constitution if the defendant has such minimum contacts with the state that the assertion of jurisdiction does not violate traditional notions of fair play and substantial justice.” (<i>Vons Companies, Inc. v. Seabest Foods, Inc.</i> (1996) 14 Cal.4th 434, 444 [internal quotation marks removed].) When a nonresident defendant challenges personal jurisdiction, the burden shifts to the plaintiff to demonstrate by a preponderance of the evidence that all necessary jurisdictional criteria are met. (<i>Ziller Electronics Lab GmbH v. Superior Court</i> (1988) 206 Cal.App.3d 1222, 1232-1233.) This must be done with declarations that offer more than vague assertions of ultimate facts; the declarations must offer specific evidentiary facts permitting a court to form an independent conclusion on the issue of jurisdiction. (<i>In re Automobile Antitrust Cases I and II</i> (2005) 135 Cal. App. 4th 100, 110.) “Once facts showing minimum contacts with the forum state are established, however, it becomes the defendant's burden to demonstrate that the exercise of jurisdiction would be unreasonable.” (<i>Jewish Def. Org., Inc. v. Superior Court</i> (1999) 72 Cal. App. 4th 1045, 1054-55).

Consistent with these principles, California courts can exercise personal jurisdiction over non-resident defendants on two bases: (1) general jurisdiction; or (2) specific jurisdiction.

Defendant argues that it is not subject to either general or specific jurisdiction. Plaintiff does not contend Defendant is subject to general jurisdiction; instead it argues that specific jurisdiction has been established. **Thus, only specific jurisdiction is at issue in this motion.**

A nonresident defendant may be subject to specific jurisdiction if: (1) the defendant has purposefully availed himself or herself of forum benefits, and (2) the controversy is related to or arises out of the defendant's contacts with the forum. (See, *Vons Companies Inc. v. Seabest Foods, Inc.*, supra, 14 Cal.4th at 446, citing *Burger King Corp. v. Rudzewicz*, supra, 471 U.S. at pp. 472-473.) The assertion of jurisdiction over the defendant must also be reasonable – that is, comport with fair play and substantial justice. (*Id.* at 477-478.)

The fact that a defendant is, and remained, outside California does not preclude a California court from exercising personal jurisdiction over him. (*Checker Motors Corporation v. Superior Court* (1993) 13 Cal.App.4th 1007, 1016 (noting the modern technology permits so much to be done from a distance).) On the other hand, it is also not enough for jurisdiction that the defendant acted outside California in a way that foreseeably caused an effect in California. (*Pavlovich v. Superior Court* (2002) 29 Cal.4th 262, 272-73.)

The court in *Jayone Foods, Inc. v. Aikyung industrial Co., Ltd.* (2019) 31 Cal.App.5th 543, noted that the assessment of a defendant's contacts involves two *separate* prongs. The first prong assesses contacts to determine whether there has been purposeful availment of the forum. The second prong is whether any of the defendant's contacts with the forum relate or give rise to the action in issue. These are separate inquiries and are not to be conflated. (*Id.* at 557-58.)

If the plaintiff fails to satisfy either of these prongs, personal jurisdiction is not established in the forum state. (*Schwarzenegger v. Fred Martin Motor Co.* (9th Cir. 2004) 374 F.3d 797, 802.)

The **first prong** is met by contacts **showing purposeful availment** of the forum – such as repeated sales or lawsuits. For this prong, contacts may be considered, and be found to show purposeful availment, even when they are not related to the specific claim in issue. (*Jayone Foods, Inc. v. Aikyung industrial Co., Ltd.*, supra, 31 Cal.App.5th at 554-558.)

Purposeful availment. “A nonresident defendant must have purposefully directed its activities at the forum, or purposefully availed itself of the privilege of conducting activities within the forum state, thus invoking the benefits and protections of local law. (*Hanson v. Denckla* (1958) 357 US 235, 253. See also *Dow Chemical Canada ULC v. Superior Court* (2011)

202 Cal.App.4th 170, 179 (finding fact that defendant could predict its products would reach California not sufficient to establish jurisdiction where defendant did nothing that revealed intent “to invoke or benefit from the protection of” California law”).)

The **second prong** is met when there is an affiliation between the forum and the underlying contact. (*Jayone Foods, Inc. v. Aikyung industrial Co., Ltd.*, supra, 31 Cal.App.5th at 558.) In other words, the action must in some way **arise out** of the contact in the forum; the contact with the forum need not directly give rise to the action, but need only bear a substantial connection to it. (Id. at 560.)

“Arise out of”

“For specific jurisdiction, plaintiff’s claim must “arise out of” or be “related to” defendant’s forum activities. (*See Burger King Corp. v. Rudzewicz* (1985) 471 US 462, 477-478; *Bristol-Myers Squibb Co. v. Super. Ct. of Cal., San Francisco County* (2017) 582 U.S. 255, 264-265 (“there must be an affiliation between the forum and the underlying controversy, principally, [an] activity or an occurrence that takes place in the forum State and is therefore subject to the State’s regulation”) (brackets in original; internal quotes and citation omitted).) “Even regularly occurring sales of a product in a State do not justify the exercise of jurisdiction over a claim unrelated to those sales.” (*Bristol-Myers Squibb Co. v. Super. Ct. of Cal., San Francisco County*, 582 U.S. at 264 (citation and quote marks omitted).)

Fair and Reasonable

If plaintiff shows that the nonresident defendant has “purposefully availed” itself of benefits and protections of forum law, that defendant bears the burden of proving it would be unreasonable for local courts to exercise jurisdiction. (*Burger King Corp. v. Rudzewicz*, supra, 471 US at 476-477.)

Here, Plaintiff has failed to establish Defendant purposefully availed itself with California through its own affirmative actions. The evidence before the Court shows that Plaintiff, not Defendant, initiated contact with Defendant after the patient was admitted for medical care. Defendant responded and eventually issued payment for services covered under the patient’s plan.

The Ninth Circuit has explained that “use of the mails, telephone, or other international communications” ordinarily does not qualify as purposeful activity invoking the benefits and protections of the forum state absent some substantial forum connection. (*Peterson v. Kennedy* (9th Cir. 1985) 771 F.2d 1244, 1262.) Engagement in verification of benefit communications with Plaintiff is insufficient to establish specific jurisdiction. (*University of Southern California v. Fidelis Care* (C.D. Cal., Nov. 26, 2025, No. 2:25-CV-08461-SSC) 2025 WL 3438564 p. 3) Sending payments and other communications to California as a result of a patient’s unilateral decision to seek treatment did not amount to defendant purposefully availing itself of the privilege of conducting business in California. (Ibid.) Out-of-state insurer defendants did not subject themselves to specific jurisdiction when their members obtained treatment in California and defendants engaged in

		verification of benefit phone calls with plaintiff, issued some payments for services, and refused to pay the amount plaintiff contended was due. (Ibid.)_ Plaintiff’s reliance on <i>Hirsch v. Blue Cross, Blue Shield of Kansas City</i>, 800 F.2d 1474, 1479-80 (9th Cir. 1986) does not assist them here. In <i>Hirsch</i>, the Ninth Circuit held that Blue Cross's contacts with California gave rise to specific jurisdiction because Blue Cross purposefully availed itself of the benefits and protections of California by negotiating an agreement with a nationwide employer to cover all its employees, knowing that the employer employed people nationwide. (800 F.2d at 1479–80.) Further, <i>Hirsch</i> (the patient) had sent the application from California, using a California address, and received a Blue Cross insurance card at his residence in California. (Id. at 1479.) No similar facts are presented in this case. The patient, not Defendant, sought care in California. Moreover, it is undisputed that Defendant also did not sponsor, fund, or administer a health plan, as the plan was administered by Allied Digital Services, LLC (“ADS”). In other words, Defendant is not the insurer. Defendant was the claims administrator for ADS for the plan during the relevant time period. Furthermore, there is no evidence that Defendant issued the Plan ID Card or that the Plan ID Card guaranteed coverage or payment. Because Plaintiff has failed to make a showing that Defendant purposefully availed itself of the privilege of doing business in California, the Court need not address the remaining prongs of the specific personal jurisdiction analysis. Based upon the foregoing, Defendant’s motion is GRANTED. Case Management Conference is continued to <u>December 17, 2026</u>, at 09:00 am in Department C10. The moving party to give notice.
8	Boughen vs. Watson	Defendants Richard David Watson and Gina L. Watson, both individually and as co-trustees of The Watson Family Trust, U/A Dated May 26, 2005, file a renewed motion to expunge the <i>lis pendens</i> recorded on or about August 5, 2024 by Plaintiff Martha Boughen. The motion is DENIED. A renewed motion must be supported by an affidavit showing “what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (Code Civ. Proc., § 1008(b); <i>see also Graham v. Hansen</i> (1982) 128 Cal.App.3d 965, 969, 70.) If the procedural requirements are not met, the renewal motion must be denied, and any order made on the renewed motion may be revoked or set aside on <i>ex parte</i> motion. (See Code Civ. Proc., § 1008(b).)

		Here, Defendants' moving papers include no affidavit showing what application was made before, when and to what judge, and what order or decision was made. For this reason, the court must deny Defendants' renewed motion to expunge lis pendens. Clerk is ordered to give notice.